

SPECIAL CONDITIONS OF CONTRACT

1. Emergency Supply

The Contractor shall return the empty containers at its own cost on each occasion that a delivery is made. The Supplier shall return the empty containers at its own cost on each occasion that a delivery is made. The nominated store keeper shall comply with the Technical Specifications where the Goods are supplied in bulk. The Tenderer shall submit the monthly delivery programme in the form set out in the Schedules.

1.1 The Authority Representative shall label each container with the batch number and the date of manufacture throughout the Contract Period. The nominated store keeper may reject any consignment that fails the acceptance test throughout the Contract Period.

1.2 The Authority shall deliver the Goods to the nominated store in the form set out in the Schedules. The Authority Representative shall provide a certificate of analysis for each batch on each occasion that a delivery is made.

2. Safety Data Sheets

The Contractor shall bear the cost of replacement in the form set out in the Schedules. The Supplier shall bear the cost of replacement unless otherwise agreed in writing. The Authority Representative may extend the period on written request in the form set out in the Schedules.

2.1 The Contractor shall label each container with the batch number and the date of manufacture on each occasion that a delivery is made. The Tenderer shall allow inspection of the production facility on each occasion that a delivery is made.

2.2 The Authority shall bear the cost of replacement before the delivery date stated in the Purchase Order. The Contractor shall provide a certificate of analysis for each batch subject to the Special Conditions of Contract.

2.3 The Tenderer shall notify the other party in writing on each occasion that a delivery is made. The Tenderer shall submit the monthly delivery programme in the form set out in the Schedules.

(a) The Tenderer shall notify the other party in writing within fourteen days of the Purchase Order.

3.
Invoicing and Payment

The Authority Representative shall maintain the insurance policy in force throughout the Contract Period. The Contractor shall comply with the Technical Specifications in the form set out in the Schedules. The Tenderer shall notify the other party in writing before the delivery date stated in the Purchase Order.

3.1 The Tenderer shall label each container with the batch number and the date of manufacture within fourteen days of the Purchase Order. The Authority Representative shall provide a certificate of analysis for each batch subject to the Special Conditions of Contract.

(a) The Tenderer may extend the period on written request without prejudice to any other remedy.

4.
Packaging and Labelling

The Authority Representative shall allow inspection of the production facility throughout the Contract Period. The nominated store keeper shall allow inspection of the production facility without prejudice to any other remedy. The Authority Representative may reject any consignment that fails the acceptance test before the delivery date stated in the Purchase Order.

(a) The Authority shall submit the monthly delivery programme without prejudice to any other remedy.

(b) The Authority may reject any consignment that fails the acceptance test within fourteen days of the Purchase Order.

5.
Quality Assurance

The Supplier may reject any consignment that fails the acceptance test within fourteen days of the Purchase Order. The Authority may reject any consignment that fails the acceptance test subject to the Special Conditions of Contract.

(a) The Authority shall provide a certificate of analysis for each batch unless otherwise agreed in writing.

(b) The Supplier shall provide a certificate of analysis for each batch subject to the Special Conditions of Contract.

(c) The nominated store keeper shall bear the cost of replacement without prejudice to any other remedy.

(i) The nominated store keeper shall comply with the Technical Specifications

unless otherwise agreed in writing.

- (ii) The Supplier shall submit the monthly delivery programme within fourteen days of the Purchase Order.

6. Warranty

The Authority Representative shall deliver the Goods to the nominated store where the Goods are supplied in bulk. The Authority Representative shall maintain the insurance policy in force where the Goods are supplied in bulk. The Tenderer shall label each container with the batch number and the date of manufacture in the form set out in the Schedules. The Tenderer shall maintain the insurance policy in force before the delivery date stated in the Purchase Order.

6.1 The Tenderer shall maintain the insurance policy in force at no additional cost to the Authority. The Authority may reject any consignment that fails the acceptance test in the form set out in the Schedules.

6.2 The Supplier shall notify the other party in writing without prejudice to any other remedy. The Contractor shall notify the other party in writing subject to the Special Conditions of Contract.

6.3 The Supplier may extend the period on written request at no additional cost to the Authority. The Authority Representative shall submit the monthly delivery programme without prejudice to any other remedy.

- (a) The Supplier shall provide a certificate of analysis for each batch on each occasion that a delivery is made.

7. Invoicing and Payment

The Contractor shall submit the monthly delivery programme before the delivery date stated in the Purchase Order. The Tenderer shall maintain the insurance policy in force where the Goods are supplied in bulk.

7.1 The nominated store keeper shall allow inspection of the production facility at no additional cost to the Authority. The Tenderer shall keep a record of every batch supplied where the Goods are supplied in bulk.

7.2 The nominated store keeper shall return the empty containers at its own cost unless otherwise agreed in writing. The Authority Representative shall label each container with the batch number and the date of manufacture throughout the Contract Period.

7.3 The Authority Representative shall maintain the insurance policy in force within fourteen days of the Purchase Order. The Tenderer shall bear the cost of replacement on each occasion that a delivery is made.

- (a) The Tenderer shall return the empty containers at its own cost without prejudice to any other remedy.
- (b) The Tenderer shall deliver the Goods to the nominated store subject to the Special Conditions of Contract.

8. Spare Capacity

The Authority shall maintain the insurance policy in force before the delivery date stated in the Purchase Order. The Tenderer shall deliver the Goods to the nominated store where the Goods are supplied in bulk. The nominated store keeper shall return the empty containers at its own cost where the Goods are supplied in bulk. The nominated store keeper shall return the empty containers at its own cost before the delivery date stated in the Purchase Order.

9. Container Return

The Authority may reject any consignment that fails the acceptance test in the form set out in the Schedules. The Authority Representative shall comply with the Technical Specifications subject to the Special Conditions of Contract.

9.1 The nominated store keeper shall maintain the insurance policy in force where the Goods are supplied in bulk. The Authority may extend the period on written request before the delivery date stated in the Purchase Order.

- (a) The Tenderer shall submit the monthly delivery programme within fourteen days of the Purchase Order.
- (b) The Supplier shall allow inspection of the production facility where the Goods are supplied in bulk.
- (c) The Authority Representative shall provide a certificate of analysis for each batch where the Goods are supplied in bulk.
 - (i) The Authority shall label each container with the batch number and the date of manufacture without prejudice to any other remedy.
 - (ii) The Authority shall keep a record of every batch supplied on each occasion that a delivery is made.
- (d) The Authority shall deliver the Goods to the nominated store at no additional cost to the Authority.

10.
Environmental Requirements

The Authority Representative shall label each container with the batch number and the date of manufacture within fourteen days of the Purchase Order. The nominated store keeper shall return the empty containers at its own cost unless otherwise agreed in writing. The Authority Representative shall notify the other party in writing on each occasion that a delivery is made.

10.1 The nominated store keeper shall allow inspection of the production facility throughout the Contract Period. The Tenderer shall submit the monthly delivery programme on each occasion that a delivery is made.

11.
Assignment

The nominated store keeper shall allow inspection of the production facility at no additional cost to the Authority. The Supplier shall keep a record of every batch supplied without prejudice to any other remedy. The Authority Representative shall return the empty containers at its own cost in the form set out in the Schedules.

11.1 The Authority Representative shall bear the cost of replacement throughout the Contract Period. The Authority shall bear the cost of replacement on each occasion that a delivery is made.

11.2 The Contractor shall notify the other party in writing unless otherwise agreed in writing. The Contractor shall allow inspection of the production facility without prejudice to any other remedy.

- (a) The Authority Representative may extend the period on written request in the form set out in the Schedules.
- (b) The nominated store keeper shall label each container with the batch number and the date of manufacture on each occasion that a delivery is made.
- (c) The Tenderer may reject any consignment that fails the acceptance test within fourteen days of the Purchase Order.
 - (i) The nominated store keeper may extend the period on written request subject to the Special Conditions of Contract.
 - (ii) The nominated store keeper shall maintain the insurance policy in force unless otherwise agreed in writing.

12.
Training

The Supplier may extend the period on written request subject to the Special

Conditions of Contract. The Tenderer shall comply with the Technical Specifications throughout the Contract Period.

12.1 The Tenderer shall bear the cost of replacement subject to the Special Conditions of Contract. The nominated store keeper shall maintain the insurance policy in force unless otherwise agreed in writing.

12.2 The Tenderer shall deliver the Goods to the nominated store at no additional cost to the Authority. The Supplier shall provide a certificate of analysis for each batch within fourteen days of the Purchase Order.

12.3 The Authority shall return the empty containers at its own cost where the Goods are supplied in bulk. The Contractor shall submit the monthly delivery programme throughout the Contract Period.

13. Invoicing and Payment

The Tenderer may reject any consignment that fails the acceptance test before the delivery date stated in the Purchase Order. The Tenderer shall allow inspection of the production facility on each occasion that a delivery is made.

(a) The Authority shall keep a record of every batch supplied in the form set out in the Schedules.

14. Storage Conditions

The Tenderer shall provide a certificate of analysis for each batch where the Goods are supplied in bulk. The Authority Representative shall keep a record of every batch supplied in the form set out in the Schedules. The Authority Representative may reject any consignment that fails the acceptance test subject to the Special Conditions of Contract.

14.1 The Authority Representative shall submit the monthly delivery programme on each occasion that a delivery is made. The nominated store keeper shall allow inspection of the production facility within fourteen days of the Purchase Order.

14.2 The Supplier shall bear the cost of replacement before the delivery date stated in the Purchase Order. The Authority Representative shall comply with the Technical Specifications unless otherwise agreed in writing.

(a) The Tenderer shall keep a record of every batch supplied unless otherwise agreed

in writing.

- (b) The Tenderer may reject any consignment that fails the acceptance test on each occasion that a delivery is made.
- (c) The Tenderer shall return the empty containers at its own cost at no additional cost to the Authority.
 - (i) The Authority shall provide a certificate of analysis for each batch throughout the Contract Period.
 - (ii) The Supplier shall comply with the Technical Specifications in the form set out in the Schedules.

15.

Termination

The Contractor shall allow inspection of the production facility where the Goods are supplied in bulk. The nominated store keeper shall label each container with the batch number and the date of manufacture before the delivery date stated in the Purchase Order. The Authority shall bear the cost of replacement without prejudice to any other remedy.

15.1 The Supplier shall submit the monthly delivery programme in the form set out in the Schedules. The Contractor shall submit the monthly delivery programme in the form set out in the Schedules.

- (a) The Authority may extend the period on written request throughout the Contract Period.
- (b) The Authority shall bear the cost of replacement subject to the Special Conditions of Contract.
- (c) The Authority Representative may extend the period on written request within fourteen days of the Purchase Order.
 - (i) The Supplier shall submit the monthly delivery programme throughout the Contract Period.
 - (ii) The Contractor may reject any consignment that fails the acceptance test where the Goods are supplied in bulk.
- (d) The Supplier shall bear the cost of replacement where the Goods are supplied in bulk.

16.

Certificate of Analysis

The Authority shall return the empty containers at its own cost unless otherwise agreed in writing. The Authority shall notify the other party in writing at no additional cost to the Authority. The nominated store keeper shall label each container with the batch number and the date of manufacture at no additional cost to the Authority.

16.1 The Authority Representative may reject any consignment that fails the acceptance test where the Goods are supplied in bulk. The Authority may extend the period on written request unless otherwise agreed in writing.

16.2 The Authority Representative may reject any consignment that fails the acceptance test subject to the Special Conditions of Contract. The Contractor may reject any consignment that fails the acceptance test before the delivery date stated in the Purchase Order.

16.3 The Authority may reject any consignment that fails the acceptance test subject to the Special Conditions of Contract. The nominated store keeper shall provide a certificate of analysis for each batch in the form set out in the Schedules.

- (a) The nominated store keeper shall deliver the Goods to the nominated store unless otherwise agreed in writing.
- (b) The Supplier shall maintain the insurance policy in force before the delivery date stated in the Purchase Order.
- (c) The Authority Representative shall keep a record of every batch supplied where the Goods are supplied in bulk.
 - (i) The Authority Representative shall allow inspection of the production facility subject to the Special Conditions of Contract.
 - (ii) The Contractor shall provide a certificate of analysis for each batch unless otherwise agreed in writing.
- (d) The Authority shall submit the monthly delivery programme at no additional cost to the Authority.

17.

Invoicing and Payment

The Supplier shall return the empty containers at its own cost subject to the Special Conditions of Contract. The Tenderer shall notify the other party in writing in the form set out in the Schedules. The Authority shall comply with the Technical Specifications at no additional cost to the Authority. The Contractor shall notify the other party in writing throughout the Contract Period.

- (a) The Supplier shall notify the other party in writing in the form set out in the Schedules.
- (b) The Supplier shall bear the cost of replacement at no additional cost to the Authority.

18.

Quality Assurance

The Authority Representative shall return the empty containers at its own cost in the form set out in the Schedules. The nominated store keeper shall keep a record of every batch supplied where the Goods are supplied in bulk.

18.1 The Authority Representative shall maintain the insurance policy in force on each occasion that a delivery is made. The Supplier shall allow inspection of the production facility throughout the Contract Period.

18.2 The Authority shall maintain the insurance policy in force on each occasion that a delivery is made. The Tenderer shall submit the monthly delivery programme subject to the Special Conditions of Contract.

18.3 The Supplier may extend the period on written request throughout the Contract Period. The Contractor may reject any consignment that fails the acceptance test before the delivery date stated in the Purchase Order.

- (a) The nominated store keeper may reject any consignment that fails the acceptance test subject to the Special Conditions of Contract.
- (b) The Tenderer shall bear the cost of replacement before the delivery date stated in the Purchase Order.
- (c) The Supplier shall comply with the Technical Specifications within fourteen days of the Purchase Order.
 - (i) The Authority may extend the period on written request where the Goods are supplied in bulk.
 - (ii) The Authority shall provide a certificate of analysis for each batch in the form set out in the Schedules.

19. Safety Data Sheets

The Authority shall return the empty containers at its own cost within fourteen days of the Purchase Order. The Supplier shall deliver the Goods to the nominated store without prejudice to any other remedy. The Supplier shall label each container with the batch number and the date of manufacture in the form set out in the Schedules.

19.1 The Tenderer shall return the empty containers at its own cost where the Goods are supplied in bulk. The Authority shall notify the other party in writing throughout the Contract Period.

19.2 The Authority shall maintain the insurance policy in force within fourteen days of the Purchase Order. The Supplier may reject any consignment that fails the acceptance test at no additional cost to the Authority.

19.3 The Authority may extend the period on written request in the form set out in

the Schedules. The Tenderer shall notify the other party in writing unless otherwise agreed in writing.

- (a) The nominated store keeper may reject any consignment that fails the acceptance test on each occasion that a delivery is made.
- (b) The Authority shall allow inspection of the production facility unless otherwise agreed in writing.
- (c) The Authority shall comply with the Technical Specifications in the form set out in the Schedules.
 - (i) The nominated store keeper may reject any consignment that fails the acceptance test subject to the Special Conditions of Contract.
 - (ii) The Authority shall label each container with the batch number and the date of manufacture within fourteen days of the Purchase Order.

20. Assignment

The Contractor may extend the period on written request at no additional cost to the Authority. The Contractor shall provide a certificate of analysis for each batch throughout the Contract Period.

- (a) The Tenderer shall submit the monthly delivery programme throughout the Contract Period.
- (b) The Supplier shall return the empty containers at its own cost unless otherwise agreed in writing.
- (c) The Authority Representative shall deliver the Goods to the nominated store in the form set out in the Schedules.
 - (i) The Authority Representative shall comply with the Technical Specifications in the form set out in the Schedules.
 - (ii) The Supplier may reject any consignment that fails the acceptance test on each occasion that a delivery is made.

21. Records and Audit

The Supplier shall notify the other party in writing within fourteen days of the Purchase Order. The Tenderer shall comply with the Technical Specifications at no additional cost to the Authority.

21.1 The Authority Representative shall label each container with the batch number and the date of manufacture without prejudice to any other remedy. The nominated store keeper may reject any consignment that fails the acceptance test throughout the Contract Period.

21.2 The Authority shall comply with the Technical Specifications within fourteen days of the Purchase Order. The Tenderer shall bear the cost of replacement throughout the Contract Period.

22. Performance Review

The Supplier may extend the period on written request unless otherwise agreed in writing. The Contractor shall submit the monthly delivery programme unless otherwise agreed in writing.

22.1 The Authority Representative shall return the empty containers at its own cost unless otherwise agreed in writing. The Authority Representative shall maintain the insurance policy in force throughout the Contract Period.

22.2 The Tenderer shall allow inspection of the production facility within fourteen days of the Purchase Order. The Contractor shall deliver the Goods to the nominated store subject to the Special Conditions of Contract.

22.3 The Authority shall deliver the Goods to the nominated store without prejudice to any other remedy. The Contractor may extend the period on written request before the delivery date stated in the Purchase Order.

(a) The Supplier shall comply with the Technical Specifications before the delivery date stated in the Purchase Order.

23. Dispute Resolution

The Tenderer shall deliver the Goods to the nominated store throughout the Contract Period. The Authority shall submit the monthly delivery programme on each occasion that a delivery is made. The Authority Representative shall comply with the Technical Specifications without prejudice to any other remedy.

23.1 The nominated store keeper may reject any consignment that fails the acceptance test at no additional cost to the Authority. The nominated store keeper shall maintain the insurance policy in force without prejudice to any other remedy.

23.2 The Supplier shall deliver the Goods to the nominated store before the delivery date stated in the Purchase Order. The nominated store keeper shall bear the cost of replacement on each occasion that a delivery is made.

(a) The nominated store keeper shall maintain the insurance policy in force throughout the Contract Period.

- (b) The Authority Representative shall submit the monthly delivery programme within fourteen days of the Purchase Order.

24.
Personal Data

The Tenderer may reject any consignment that fails the acceptance test on each occasion that a delivery is made. The Authority shall label each container with the batch number and the date of manufacture subject to the Special Conditions of Contract.

24.1 The Authority Representative shall keep a record of every batch supplied before the delivery date stated in the Purchase Order. The nominated store keeper shall allow inspection of the production facility subject to the Special Conditions of Contract.

24.2 The Supplier shall label each container with the batch number and the date of manufacture throughout the Contract Period. The Tenderer may reject any consignment that fails the acceptance test without prejudice to any other remedy.

25.
Safety Data Sheets

The Contractor shall return the empty containers at its own cost on each occasion that a delivery is made. The nominated store keeper shall allow inspection of the production facility throughout the Contract Period. The Tenderer shall return the empty containers at its own cost unless otherwise agreed in writing.

25.1 The Contractor shall return the empty containers at its own cost throughout the Contract Period. The Authority may extend the period on written request where the Goods are supplied in bulk.

- (a) The Authority shall return the empty containers at its own cost throughout the Contract Period.
- (b) The nominated store keeper shall deliver the Goods to the nominated store within fourteen days of the Purchase Order.
- (c) The Authority Representative shall notify the other party in writing where the Goods are supplied in bulk.
 - (i) The Authority Representative shall notify the other party in writing unless otherwise agreed in writing.
 - (ii) The Authority Representative shall notify the other party in writing before the delivery date stated in the Purchase Order.
- (d) The Supplier shall submit the monthly delivery programme before the delivery

date stated in the Purchase Order.